

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202200930	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 01/25/2022 3:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/25/2023	Precinct: 44
Date/Time CV Reported Mon, 02/14/2022 1:36 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/14/2022 1:36 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Tomasz Piechowicz	16404	957957	109 PCT
3. PO Jovanna Woloski	24350	953055	PBBX
4. PO Anes Ibrahimagic	23973	963076	109 PCT
5. PO Anthony Arace	00317	966443	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Jovanna Woloski	Abuse: Police Officer Jovanna Woloski stopped § 87(2)(b)	A . Exonerated
B . PO Tomasz Piechowicz	Abuse: Police Officer Tomasz Piechowicz searched § 87(2)(b)	B . Unfounded
C . PO Tomasz Piechowicz	Discourtesy: Police Officer Tomasz Piechowicz spoke discourteously to § 87(2)(b)	C . Exonerated
D . PO Tomasz Piechowicz	Force: Police Officer Tomasz Piechowicz used physical force against § 87(2)(b)	D . Exonerated
E . PO Anes Ibrahimagic	Force: Police Officer Anes Ibrahimagic used physical force against § 87(2)(b)	E . Exonerated
F . PO Anthony Arace	Force: Police Officer Anthony Arace used physical force against § 87(2)(b)	F . Exonerated
G . PO Tomasz Piechowicz	Force: Police Officer Tomasz Piechowicz used physical force against § 87(2)(b)	G . Unfounded
H . PO Anes Ibrahimagic	Force: Police Officer Anes Ibrahimagic used physical force against § 87(2)(b)	H . Unfounded
I . Officers	Abuse: Officers strip-searched § 87(2)(b)	I . Unfounded
J . Officers	Force: Officers used physical force against § 87(2)(b)	J . Unfounded
K . PO Anes Ibrahimagic	Abuse: Police Officer Anes Ibrahimagic strip-searched § 87(2)(b)	K . Substantiated

Officer(s)	Allegation	Investigator Recommendation
L . PO Jovanna Woloski	Discourtesy: Police Officer Jovanna Woloski spoke discourteously to § 87(2)(b)	L . Exonerated
M . PO Jovanna Woloski	Discourtesy: Police Officer Jovanna Woloski spoke discourteously to an individual.	M . Exonerated
N . Officers	Force: Officers restricted § 87(2)(b) breathing.	N . Unfounded
O . PO Jovanna Woloski	Abuse: Police Officer Jovanna Woloski failed to provide § 87(2)(b) with a business card.	O . Substantiated

Case Summary

On February 14, 2022, § 87(2)(b) filed this complaint via the CCRB Call Processing System.

On January 25, 2022, at approximately 3:00 PM, § 87(2)(b) was exiting § 87(2)(b) in the Bronx when he was stopped by PO Jovanna Woloski of the 44th Precinct (**Allegation A: Abuse of Authority, Within NYPD Guidelines**). While standing in front of the building, PO Tomasz Piechowicz allegedly searched § 87(2)(b) and spoke discourteously to him before he, PO Anes Ibrahimagic, and PO Anthony Arace, all of the 44th Precinct, allegedly used force to handcuff him (**Allegation B: Abuse of Authority, Unfounded; Allegation C: Discourtesy, Within NYPD Guidelines; Allegations D, E, and F: Force, Within NYPD Guidelines**). PO Piechowicz and PO Ibrahimagic then allegedly dragged § 87(2)(b) to a police vehicle (**Allegations G and H: Force, Unfounded**). While at the police vehicle, an officer allegedly pulled down § 87(2)(b) pants (**Allegation I: Abuse of Authority, Unfounded**). Officers then allegedly threw § 87(2)(b) to the ground (**Allegation J: Force, Unfounded**). While § 87(2)(b) was on the ground, PO Ibrahimagic conducted a visual inspection beneath § 87(2)(b) underwear (**Allegation K: Abuse of Authority, Substantiated**). Officers then allegedly fully removed § 87(2)(b) pants (subsumed within allegation I). While officers were waiting for an ambulance to arrive, PO Woloski spoke discourteously to § 87(2)(b) and said to an individual watching the incident, "He had a fucking gun. He tried to break into someone's apartment. Get the fuck out of here" (**Allegation L and M: Discourtesy, Within NYPD Guidelines**). While on the ground, officers allegedly restricted § 87(2)(b) breathing (**Allegation N: Force, Unfounded**).

§ 87(2)(b) was transported to the hospital and was released without being summonsed or arrested. PO Woloski, who accompanied § 87(2)(b) to the hospital, failed to offer § 87(2)(b) a business card (**Allegation O: Abuse of Authority, Substantiated**).

Body Worn Camera Footage was obtained for PO Woloski, PO Lindley, PO Piechowicz, PO Arace, PO Then, PO Julianny Then, PO Dahuan Li, PO Lee Rubin, PO Randel Bueno, PO Jose Hernandez, PO Robert Riley, PO Yael Padilla, PO Julian Reyes, Lieutenant Tik Chang, and PO Judith Marrero. The footage is located in IAs # 30-44, and #123, and is summarized in IA #45 (**Board Review 01-17**).

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Jovanna Woloski stopped § 87(2)(b)

Event documents show, at 2:59 PM, § 87(2)(b) calls 911 and states that an individual is trying to break into her apartment. Event documents note there is loud banging in the background and a male individual can be heard shouting, "Open the fucking door." § 87(2)(b) states the individual, who is a friend of hers, is kicking down the door and describes him as a black man in his early 40's wearing a grey hoodie and black sweatpants. § 87(2)(b) does not provide the individual's name. She states that he is also kicking the door of another apartment. § 87(2)(b) does not know if the individual is armed. § 87(2)(b) provides her callback number. At 3:03 PM, a separate 911 call is placed by a male individual who identifies himself as building security. The individual provides a consistent description of the suspect and states that the suspect is on the second floor with a gun, though event documents show the suspect has been stopped by officers in front of the location several minutes prior to this (**Board Review 18**).

BWC from PO Woloski shows, at 00:56, visible on the media player at the bottom of the screen, as officers are entering the building, § 87(2)(b) is exiting the building. PO Woloski immediately

stops him by putting her right hand on his chest and grabbing his right wrist with her left hand. § 87(2)(b) is a 42-year-old, 6'0" tall, 200-pound black man. At the time of the incident § 87(2)(b) was wearing a light grey hoodie and black sweatpants. PO Woloski says that § 87(2)(b) fits the description of the suspect and tells him to wait with the other officers while she goes upstairs and speaks with the 911 caller. At 02:08, officers knock on § 87(2)(b) door and announce themselves. A woman in the neighboring apartment opens her front door, states that she did not call 911, but there was a man in the hallway trying to break down § 87(2)(b) front door. PO Woloski knocks on the front door of § 87(2)(b) apartment. § 87(2)(b) can be heard trying to unlock the door before telling officers she is unable to open the door because it is stuck. The door is visibly damaged and the exterior door-knob is missing. PO Woloski tells her to move back because the officers are going to kick open the door, which they do. § 87(2)(b) acknowledges that she called 911 and provided a description of her friend, whom she said was banging on the door. § 87(2)(b) then states that she does not know who was banging on her door and becomes uncooperative with officers' questions (**Board Review 04**).

§ 87(2)(b) statement was somewhat inconsistent with the BWC footage. On January 25, 2022, at approximately 3:00 PM, § 87(2)(b) entered § 87(2)(b) in the Bronx. § 87(2)(b) was at the location to collect a loan that his wife had given to § 87(2)(b) who lives in § 87(2)(b). A postal worker was leaving the building as § 87(2)(b) arrived and allowed § 87(2)(b) to enter. § 87(2)(b) went upstairs to § 87(2)(b) apartment and knocked on the front door. When § 87(2)(b) did not come to the door, § 87(2)(b) knocked again. § 87(2)(b) then called his wife to make sure § 87(2)(b) knew he was coming and knocked a third time before leaving. § 87(2)(b) was at § 87(2)(b) front door for two to three minutes. He denied banging on the door, shouting, or attempting to verbally communicate with § 87(2)(b). § 87(2)(b) denied trying to break into § 87(2)(b) apartment. As soon as § 87(2)(b) exited the front door of the building, he encountered PO Woloski and several other officers (**Board Review 19**).

PO Woloski's statement was generally consistent with the BWC footage. PO Woloski stated that she stopped § 87(2)(b) as he was at the location of a reported burglary, and he matched the suspect description provided by the 911 caller. PO Woloski did not recall any additional report of an individual with a firearm at the location (**Board Review 20**).

PO Piechowicz and PO Ibrahimagic's statements were generally consistent with PO Woloski's and the BWC footage (**Board Review 20, 21**).

According to *People v. DeBour*, 40 N.Y. 2d 210 [1976], to stop an individual, officers must possess reasonable suspicion that the person has committed, is committing, or is about to commit a crime. (**Board Review 23**).

Officers received a report of a burglary and a detailed physical description of the suspect. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Allegation B – Abuse of Authority: Police Officer Tomasz Piechowicz searched § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Tomasz Piechowicz used force against § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Anes Ibrahimagic used force against

§ 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Anthony Arace used force against

§ 87(2)(b)

Allegation G – Force: Police Officer Tomasz Piechowicz used force against

§ 87(2)(b)

Allegation H – Force: Police Officer Anes Ibrahimagic used force against

§ 87(2)(b)

BWC from PO Piechowicz shows, at 01:15, PO Piechowicz asks § 87(2)(b) what's going on. § 87(2)(b) who is on the phone, states that, "she violated my girl" then states, "My girl gave her money and she was supposed to give my girl the money today." PO Piechowicz asks § 87(2)(b) to step closer to the wall of the building. § 87(2)(b) complies, and PO Piechowicz tells him that he's not under arrest. § 87(2)(b) asks why he is being detained and PO Piechowicz states that he matches the description of an individual who is trying to break down a tenant's door. § 87(2)(b) states, "I was kicking her door because she owes me money, I was just on the phone with her, and she's not answering the door. The girl owes my wife money" (**Board Review 03**).

BWC from PO Ibrahimagic captures a second angle of the conversation and shows, beginning at 01:11, § 87(2)(b) reaches his left hand into his left pants pocket. PO Piechowicz immediately grabs § 87(2)(b) left forearm and orders him to keep his hands out of his pockets. § 87(2)(b) then removes his hand from his pocket and is clenching some cash, which he drops on the ground. PO Piechowicz maintains his hold on § 87(2)(b) left arm, PO Arace grabs § 87(2)(b) right arm and the officers pull § 87(2)(b) hands behind his back to handcuff him. During this time, § 87(2)(b) attempts to pull his arms away from the officers. PO Ibrahimagic climbs over the railing in front of the building to assist the officers in handcuffing § 87(2)(b). § 87(2)(b) complains that his money is on the ground and PO Ibrahimagic tells him the officers will pick it up but that he needs to stop resisting. At 01:33, PO Ibrahimagic orders § 87(2)(b) to give the officers his hand. At 01:47, § 87(2)(b) continues to resist by twisting his body and trying to pull away from the officers. PO Ibrahimagic repeatedly orders § 87(2)(b) to stop moving. At 02:25, several dollar bills are visible on the ground. § 87(2)(b) continues to complain that his money is on the ground. The officers tell § 87(2)(b) that they will retrieve his money. PO Piechowicz bends down and, at 02:44, PO Piechowicz tells § 87(2)(b) that his money is back in his pocket. At 3:03, § 87(2)(b) continues twisting his body and officers again tell him to stop resisting. § 87(2)(b) ignores officers repeated orders to stop moving and starts shouting that he cannot breathe while POs Piechowicz and PO Ibrahimagic hold him underneath his arms (addressed in allegation N) (**Board Review 16**).

BWC from PO Arace shows, at 04:32, PO Ibrahimagic and PO Piechowicz, who are standing on either side of § 87(2)(b) and who still have their arms locked underneath his, escort § 87(2)(b) to a police vehicle. § 87(2)(b) walks with the officers to the vehicle. At no point does any part of § 87(2)(b) body drag on the ground nor is § 87(2)(b) handcuffed on the ground (**Board Review 01**).

§ 87(2)(b) statement was inconsistent with the BWC footage. § 87(2)(b) stated that while outside the building, he was speaking to officers in an elevated tone. He did so for the purpose of drawing attention and attracting possible witnesses. During their conversation, PO Piechowicz asked § 87(2)(b) to produce his identification. As § 87(2)(b) was reaching into his back pocket to retrieve his wallet, PO Piechowicz immediately reached his hand into § 87(2)(b) front right pocket. At the time, § 87(2)(b) had loose bills, a set of keys on a small keychain, which is the size of a military dog-tag, as well as chap-stick in his pants pocket. PO Piechowicz removed his hand from § 87(2)(b) pocket, and one hundred dollars fell onto the ground. § 87(2)(b)

§ 87(2)(b) asked PO Piechowicz why he was dropping his money on the ground. PO Piechowicz then told § 87(2)(b) to put his hands behind his back and the officers began to handcuff him. The officers cuffed § 87(2)(b) left hand and told him to stop resisting. § 87(2)(b) denied that he resisted officers. § 87(2)(b) was holding his phone with his right hand and was still talking to his fiancé while PO Arace tried to pull the phone away from § 87(2)(b) which he eventually did. § 87(2)(b) left arm was “giving out” from loss of circulation due to the tightness of the handcuff. Because of this, the officers were having difficulty cuffing § 87(2)(b) hands. § 87(2)(b) described what happened next as a “tussle” and stated that the officers “roughed him up,” though he was unable to provide any further details as he was unable to recall this portion of the incident clearly. PO Piechowicz and PO Ibrahimagic then pulled § 87(2)(b) down the building entrance ramp by his right hand as the front of his legs dragged on the ground, resulting in various cuts and scrapes. Once in the street, the officers handcuffed § 87(2)(b) on the ground. Both of § 87(2)(b) arms began to give out due to a lack of circulation caused by the handcuffs. § 87(2)(b) stated that he also has circulation issues due to sickle cell anemia. The officers then stood § 87(2)(b) up and escorted him to a police vehicle (Board Review 19).

PO Piechowicz’ statement was generally consistent with the BWC footage. While standing with § 87(2)(b) outside the building, PO Piechowicz stated § 87(2)(b) who smelled of alcohol, was irate, yelling, and behaving erratically. § 87(2)(b) told officers that he was trying to retrieve money that a resident owed his girlfriend. § 87(2)(b) repeatedly put his hands in his pockets and ignored PO Piechowicz’ requests not to do so. PO Piechowicz believed that he twice ordered § 87(2)(b) not to put his hands in his pockets. While standing with § 87(2)(b) PO Piechowicz heard a separate report of an individual with a firearm at the location. When asked whether he made any observation that § 87(2)(b) was armed, PO Piechowicz stated that § 87(2)(b) kept shifting his body from side to side and looking down the street past PO Piechowicz, which led him to believe that § 87(2)(b) was preparing to flee. PO Piechowicz did not make any observation that § 87(2)(b) was concealing a weapon beneath his clothing. Based on § 87(2)(b) behavior, him reaching into his pockets, and the fact that he matched the description of the burglary suspect and an individual carrying a firearm, PO Piechowicz decided to handcuff § 87(2)(b) who had already been stopped and was not free to leave. PO Piechowicz stated that § 87(2)(b) resisted officers’ attempts to handcuff him by repeatedly tensing his arms and pulling them away from the officers. PO Piechowicz acknowledged pulling § 87(2)(b) arms behind his back to overcome his resistance and handcuff him. He denied that he or any other officer used any additional force against § 87(2)(b) attempted to pull away from officers as they walked him to the vehicle. He did not recall any part of § 87(2)(b) body dragging on the ground (Board Review 21).

Statements from PO Woloski and PO Ibrahimagic were generally consistent with PO Piechowicz’ and the BWC footage (Board Review 20, 22). PO Arace was not interviewed as his actions were captured on BWC and determined to be justifiable

According to Patrol Guide Procedure 221-01, officers may use force when it is reasonable to place a person in custody, to ensure the safety of themselves, and to protect other officers. Any use of force must be reasonable under the circumstances and not excessive. In determining whether the use of force is reasonable, relevant factors include the nature and severity of the crime, the actions taken by the subject, the immediacy of the perceived threat or harm to officers, whether the subject is actively resisting custody, and whether the subject is attempting to evade arrest by flight (Board Review 24).

§ 87(2)(b) version of events was generally inconsistent with the BWC footage, which shows

that PO Piechowicz did not search § 87(2)(b) pants pocket § 87(2)(g) it is recommended that **Allegation B** be closed as **Unfounded**.

PO Piechowicz stated that § 87(2)(b) ignored at least two orders to keep his hands out of his pockets before PO Piechowicz grabbed his arm to prevent him from doing so again, though the BWC footage shows that PO Piechowicz gave the first order simultaneously as he grabbed § 87(2)(b) arm to prevent § 87(2)(b) from reaching into his pocket. § 87(2)(g)

Additionally, § 87(2)(b) appears confrontational when speaking with officers and he acknowledged speaking in an elevated tone in order to attract witnesses to the situation. § 87(2)(g) It is therefore recommended that **Allegations D, E, and F** be closed as **Within NYPD Guidelines**.

BWC footage shows that § 87(2)(b) was standing upright and walking as he was escorted to the police vehicle by PO Piechowicz and PO Ibrahimagic. § 87(2)(g) It is therefore recommended that **Allegations G and H** be closed as **Unfounded**.

Allegation J – Force: Officers used force against § 87(2)(b) BWC footage from PO Riley shows, at 00:59, at least five officers are struggling to put § 87(2)(b) into the police vehicle as he resists by continuously moving his body. § 87(2)(b) begins screaming that he wants to go to the hospital. Officers then lift § 87(2)(b) off the ground so that he is horizontal with his chest pointed to the ground as they try to load him into the police vehicle head-first. § 87(2)(b) continues to resist by moving his body and kicking his legs. At 01:45, PO Riley, who is holding § 87(2)(b) feet, says to put § 87(2)(b) on the ground. PO Reilly then lowers § 87(2)(b) legs to the ground (**Board Review 13**).

BWC footage from PO Ibrahimagic captures a separate angle of this period in time. At 05:30, officers appear to lower § 87(2)(b) upper body to the ground. Officers do not throw him or drop him on the ground at any point (**Board Review 16**).

§ 87(2)(b) statement was generally inconsistent with the BWC footage. § 87(2)(b) stated that he refused to get in the police vehicle and physically resisted the officers. An officer then threw § 87(2)(b) onto the ground, causing him to land on his right side (**Board Review 19**).

§ 87(2)(g) BWC footage shows that no officer threw § 87(2)(b) to the ground. § 87(2)(g) it is recommended that **Allegation J** be closed as **Unfounded**.

Allegation I – Abuse of Authority: Officers strip-searched § 87(2)(b) BWC footage from PO Arace shows, 04:28, officers are struggling to restrain § 87(2)(b) at the front entrance of the building and ultimately walk him to the police vehicle. During this time, § 87(2)(b) underwear is visible as the waistband of his sweatpants is already below his buttocks (**Board Review 01**).

BWC footage from PO Hernandez shows, between 00:47 and 01:53, when PO Hernandez arrives on scene, multiple officers are struggling to place § 87(2)(b) into a police vehicle. PO Hernandez approaches § 87(2)(b) and begins to search his right pants pocket as § 87(2)(b)

struggles against the officers. As § 87(2)(b) continues to physically resist officers by pushing and pulling against the officers and swinging his legs, this appears to cause his pants to further fall to his ankles (**Board Review 10**).

BWC footage from PO Woloski shows, at 06:45, § 87(2)(b) is laying on his side with his pants around his ankles. PO Woloski orders PO Piechowicz to remove § 87(2)(b) pants, which he does (**Board Review 04**).

§ 87(2)(b) statement was somewhat inconsistent with the BWC footage. § 87(2)(b) who acknowledged physically resisting officers as they tried to place him in the police vehicle, heard an officer say they had to pat him down before getting in the police vehicle. Another officer began to pull § 87(2)(b) pants down. § 87(2)(b) believed the officer was searching for a gun as he heard over the police radio that the reported suspect had a firearm (**Board Review 19**).

PO Woloski's statement was generally consistent with the BWC. PO Woloski was not aware of any officer deliberately pulling down § 87(2)(b) pants and believed that they fell on their own. PO Woloski did not make any observation which led her to believe § 87(2)(b) was concealing a weapon beneath his clothing. PO Woloski acknowledged ordering officers to remove § 87(2)(b) pants when he was laying on the ground and that they were already around his ankles. She did this to allow § 87(2)(b) to have free movement of his legs so he could walk when officers eventually stood him up (**Board Review 20**).

PO Piechowicz' statement was generally consistent with the BWC. He was not aware of any officer deliberately pulling down § 87(2)(b) pants and was not aware of any reason to do so. PO Piechowicz stated that § 87(2)(b) pants were loose fitting and that he believed they fell down on their own. PO Piechowicz acknowledged removing § 87(2)(b) pants once they were already around his ankles. He did so because § 87(2)(b) cash had already fallen out of his pocket and wanted to ensure that nothing additional fell out and did not want § 87(2)(b) to allege that officers took any of his belongings (**Board Review 21**).

PO Ibrahimagic did not recall § 87(2)(b) pants falling down or being pulled down during the incident. After reviewing his BWC footage, PO Ibrahimagic did not recall any officer pulling down § 87(2)(b) pants and was not aware of any reason why any officers would have done so (**Board Review 22**).

PO Hernandez was not interviewed as BWC footage shows that his actions did not constitute misconduct.

BWC footage shows that § 87(2)(b) underwear was already exposed and the waistband of his pants was already below his buttocks prior to arriving at the police vehicle, when he alleged that an officer pulled them down. Furthermore, BWC footage shows that while PO Hernandez does search § 87(2)(b) pants pockets § 87(2)(g) he does not deliberately pull his pants down. At the time PO Hernandez is searching § 87(2)(b) pants pockets, § 87(2)(b) continues to physically resist officers by contorting his body, moving his legs, and attempting to pull away from the officers. § 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **Unfounded**.

Allegation K - Police Officer Anes Ibrahimagic strip-searched § 87(2)(b)

This allegation was captured on BWC and was not alleged by § 87(2)(b). BWC footage from PO Wolowski shows that an officer conducts the strip search at 20:11:10 of the hardcoded timestamp in the top right frame of the footage, though the officer's face is not captured during this time (**Board Review 04**). BWC footage from PO Marrero shows that during this time, between 00:16 and 00:22 on the media player, § 87(2)(b) is laying on the ground and there are three officers standing above him including PO Bueno, PO Ibrahimagic, and PO Wolowski (**Board Review 43**).

BWC from PO Wolowski shows, at 06:44 on the media player, an officer standing to PO Wolowski's right, uses his left hand to grab the elastic band on § 87(2)(b) boxers and pulls it outward, and away from § 87(2)(b) body. The footage shows that PO Wolowski is not the officer who conducted the strip search. Snapshots of PO Wolowski's BWC capture the point in time in which this action occurs (**Board Review 04**).

BWC footage from PO Ibrahimagic shows, at 05:51 on the media player (hardcoded timestamp 02:11:10) that PO Ibrahimagic, who is bent over above § 87(2)(b) head, uses his right hand to lift § 87(2)(b) hoodie up. PO Ibrahimagic's left hand and § 87(2)(b) underwear are out of frame when the strip search occurs. The footage shows that PO Ibrahimagic is standing to PO Wolowski's right (**Board Review 16**).

BWC footage from PO Bueno captures a separate angle of this action. At 01:44, PO Ibrahimagic can be seen on the left side of the frame holding § 87(2)(b) in the air while trying to place him in the back of the police vehicle. At 01:52, officers then lower § 87(2)(b) to the ground. At 2:00, PO Ibrahimagic can be seen to the left of PO Wolowski (her right side) as both the officers are leaning over § 87(2)(b). At 2:10, PO Ibrahimagic's right hand can be seen pulling § 87(2)(b) hoodie upwards and his left hand can be seen pulling the elastic strap of § 87(2)(b) underwear away from his body. Though PO Ibrahimagic's face is not visible when the strip search occurs, though it is visible at 02:26 of the media player after he stands up. The footage shows that PO Bueno was not the officer who conducted the strip search (**Board Review 06**).

PO Ibrahimagic did not have an independent recollection of § 87(2)(b) pants coming down at any point. He did not recall making any observation that § 87(2)(b) was concealing a weapon beneath his clothing. PO Ibrahimagic reviewed BWC footage from PO Bueno between 01:48 and 02:10. At 01:48, PO Ibrahimagic identified himself in the middle of the screen. PO Ibrahimagic was then shown the footage frame-by-frame starting at 2:10, which captures a hand pulling the elastic band of § 87(2)(b) underwear away from his body. PO Ibrahimagic denied doing this, stating that he did not know which officer did. The footage did not refresh his recollection as to any reason why a visual inspection underneath § 87(2)(b) underwear would have been necessary. PO Ibrahimagic said that officers "usually just check the waistband" when checking for weapons and that suspects sometimes hide things "up their ass" (**Board Review 22**).

Statements from PO Wolowski and PO Piechowicz were consistent with one another. The officers had no recollection of any officer pulling § 87(2)(b) underwear away from his body and did not make any observation that § 87(2)(b) was concealing any contraband beneath his underwear (**Board Review 20, 21**).

Patrol Guide Procedure 208-05 defines a strip-search as "any search in which an individual's undergarments (e.g., bra, underwear, etc.) and/or private areas are exposed or in which an individual's clothing is removed, lifted up, or pulled down to expose undergarments or private

areas.” A supervisor will authorize a strip search only when an arresting officer has articulated a reasonable suspicion that the individual is concealing evidence, contraband, or a weapon. A strip search shall be conducted only by a member of the same gender as the arrested person, in a secure area, in utmost privacy, and in the presence of only those members of the service reasonably necessary to conduct the search (**Board Review 26**).

PO Ibrahimagic did not acknowledge making contact with § 87(2)(b) underwear. Although PO Ibrahimagic’s face is not captured on BWC footage § 87(2)(g)

§ 87(2)(b) footage from PO Marrero, PO Bueno and PO Woloski shows that he is the officer standing above § 87(2)(b) to PO Wolowski’s right, who pulls § 87(2)(b) underwear away from his body. § 87(2)(g)

BWC footage shows that PO § 87(2)(g) pulled § 87(2)(b) undergarments away from his body, and that this search was conducted in public without the authorization of a supervisor § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation K** be closed as **Substantiated**.

Allegation C – Discourtesy: Police Officer Tomasz Piechowicz spoke discourteously to

§ 87(2)(b) **Allegation L – Discourtesy: Police Officer Jovanna Woloski spoke discourteously to** § 87(2)(b)

Allegation M – Discourtesy: Police Officer Jovanna Woloski spoke discourteously to an individual.

These allegations were captured on BWC and not alleged by § 87(2)(b)

BWC footage from PO Piechowicz shows, at 02:05, while PO Piechowicz is standing with § 87(2)(b) in front of the building, he orders § 87(2)(b) to keep his hands out of his pockets. He then quickly grabs and holds onto his left forearm. PO Piechowicz repeatedly orders § 87(2)(b) to not put his hands in his pockets and says, "Keep your hands out of your fucking pockets," as he attempts to pull his hands behind § 87(2)(b) hands behind his back (**Board Review 03**).

BWC from PO Woloski shows, at 05:26, officers are struggling to place § 87(2)(b) in the police vehicle and issue him multiple commands to stop moving, which § 87(2)(b) refuses to do. At 05:55, § 87(2)(b) starts yelling he can’t breathe and PO Woloski twice says, “Stop fucking moving.” At 06:55, § 87(2)(b) continues moving and rolling his body while laying on the ground. § 87(2)(b) continues to shout that he can’t breathe. PO Woloski, who is holding § 87(2)(b) left arm, says, “Nobody is doing anything to you. Get up. What the fuck?” § 87(2)(b) continues resisting by rolling his body and begins shouting that he has sickle cell anemia. PO Woloski then says, “Ok. That has nothing to do with breathing. What the fuck?” At 07:56, PO Woloski states to an individual watching officers restrain § 87(2)(b) "He had a fucking gun. He tried to break into someone's apartment. Get the fuck out of here" (**Board Review 04**).

PO Piechowicz acknowledged telling § 87(2)(b) to “keep [his] hands out of his pockets,” and

said that he made the remark in the heat of the moment (**Board Review 21**).

PO Woloski acknowledged using profanity towards § 87(2)(b) and said that she made the remarks in the heat of the moment. She acknowledged using profanity while speaking to an individual in the crowd. She did so out of frustration regarding § 87(2)(b) continued resistance and due to a large group of onlookers that were shouting at the officers (**Board Review 20**).

DAO-DCT case #2017-17005 states “that profane remarks made during stressful situations, or while an officer is trying to get a chaotic situation under control, are not misconduct” (**Board Review 27**).

§ 87(2)(b) resisted officers for approximately 20 minutes by pushing, pulling, and contorting his body and only stopped when the ambulance ultimately arrived. § 87(2)(g)

It is therefore recommended that **Allegations C, L, and M** be closed as **Within NYPD Guidelines**.

Allegation N – Force: Officers restricted § 87(2)(b) breathing.

BWC footage from PO Piechowicz (between 06:55 and 19:52), and (PO Woloski, 06:31 and 23:41) capture different angles of § 87(2)(b) while he is on the ground waiting for an ambulance. § 87(2)(b) repeatedly states that he can’t breathe and that he has sickle cell anemia. § 87(2)(b) is laying on his right side. Officers hold § 87(2)(b) legs and hold his hands behind his back to keep him on his side as § 87(2)(b) repeatedly twists his body. At no point does any officer place any pressure on § 87(2)(b) neck, back or torso. § 87(2)(b) is not put in leg shackles at any point (**Board Review 03, 04**).

§ 87(2)(b) stated that while he was on the ground, he was in shock and could not fully recall what happened. § 87(2)(b) stated at some point, officers placed leg shackles on him and that an officer was pressing his foot down on § 87(2)(b) leg shackles. § 87(2)(b) repeatedly told the officers that this, in addition the tightness of the handcuffs, was causing him to have difficulty breathing because of his circulatory issues caused by sickle cell anemia. § 87(2)(b) also stated that his difficulty breathing was the result of how the officers exerted pressure “all over [his] body” (**Board Review 19**).

Statements from PO Woloski, PO Piechowicz, and PO Ibrahimagic were consistent with the BWC footage. The officers denied that they took any action that would have restricted § 87(2)(b) breathing and denied observing any other officer do so. The officers did not observe that § 87(2)(b) had any difficulty breathing during the incident (**Board Review 20, 21, and 22**).

§ 87(2)(g)

It is therefore recommended that **Allegation N** be closed as **Unfounded**.

Allegation O – Abuse of Authority: Police Officer Jovanna Woloski failed to provide § 87(2)(b) with a business card.

PO Woloski initially stopped § 87(2)(b) and accompanied him in the ambulance to the hospital. As such, this allegation has been pleaded solely to her.

§ 87(2)(b) stated that he was not arrested or summonsed as a result of this incident and that he

level 1 instructions, which the NYPD imposed.

- PO Ibrahimagic has been a member-of-service for six years. This is the first CCRB complaint to which he has been named as a subject.
- PO Arace has been a member-of-service for four years and has been a subject in three additional CCRB complaints and four additional allegations, none of which have been substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 27, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 32**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 8

Investigator:	<u>Trevor Hackett</u>	<u>Inv. Trevor Hackett</u>	<u>4/18/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>4/18/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date